

Freedom of expression versus religious offence in sharia

Analysis run: September 12, 2026

PROVIDER

Openrouter

MODEL

Deepseek/deepseek-v4-pro En

LANGUAGE

AUDIENCE

GENERAL

INTONATION

NEUTRAL

LENGTH

Long

TEMPERATURE

0.7

SYSTEM PROMPT

You are an expert AI content generator specializing in creating structured article.

USER PROMPT

Write a concise, self-contained article entry for the title: "Freedom of expression versus religious offence in sharia".

Overall topic for alignment: Blasphemy (sabb al-nabi) and freedom of expression in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

The tension between freedom of expression and the prohibition of religious offence in sharia centres on blasphemy (*sabb al-nabi*), often conflated with apostasy. The Qur'an prescribes no worldly punishment, deferring judgement to God and counselling avoidance of mockery. Early jurists therefore built rulings on broader objectives (*maqāṣid*) and prophetic practice. Historically, the Prophet tolerated verbal abuse in Mecca but approved killings during wartime in Medina; later caliphates used blasphemy charges as a political tool. Theologically, the Ash'arī school accepted juristic severity, while the rationalist Mu'tazilī school required proven societal harm for punishment. Juristic schools diverged: Ḥanafīs allowed repentance and distinguished Muslims from protected non-Muslims; Mālikīs mandated death without room for repentance; Shāfi'īs added procedural safeguards; Ḥanbalīs paralleled Mālikīs but Ibn Taymiyya limited capital punishment to clear, persistent public harm. Orientalist scholars trace these penalties to pre-Islamic honour codes and political consolidation, not divine command. Modern human rights instruments clash with the Cairo Declaration's subordination of expression to sharia. Reformist thinkers and an AI-driven humanistic approach, using *maqāṣid* to prioritise life and intellect, argue that the Quranic ethos of no compulsion and prophetic mercy supports decriminalisation. Thus, classical sharia contains rich resources for a tolerant reinterpretation that could transform conflict into dialogue.

FULL CONTENT

Freedom of Expression versus Religious Offence in Sharia

The tension between freedom of expression and the prohibition of religious offence is one of the most contested areas in contemporary Islamic law. At the heart of this conflict lies the concept of **sabb al-nabi** (سب النبي), or insulting the Prophet Muhammad, alongside related Arabic terms such as **shatm** (شتم – revilement) and **ridḍa** (رد – apostasy). While modern human rights instruments champion the right to free speech, classical and modern interpretations of sharia have often treated blasphemy as a capital crime, raising profound questions about the boundaries of expression in Muslim-majority and minority contexts. This article examines the scriptural foundations, historical evolution, doctrinal divergences across theological and juristic schools, orientalist critiques, and the potential for a humanistic re-reading of sharia—including through the lens of artificial intelligence.

Quranic Foundations and the Absence of a Direct Penalty

The Qur'an does not prescribe a specific worldly punishment for blasphemy. Instead, it repeatedly calls for respectful discourse about the Prophet and warns believers against mockery of religious symbols. Verses such as "And when you see those who engage in [offensive] discourse concerning Our verses, then turn away from them until they enter into another conversation" (Q 6:68) emphasise avoidance over coercion. The strongest statement often cited is Q 33:57: "Indeed, those who insult Allah and His Messenger—Allah has cursed them in this world and the Hereafter and prepared for them a humiliating punishment." Here, the punishment is deferred to God, not administered by humans.

The absence of an explicit **ḥadd** (fixed punishment) for *sabb al-nabi* in the Qur'an meant that early jurists had to construct rulings based on the broader objectives of sharia (*maqāṣid al-sharī'a*) and the reported practices of the Prophet. Concepts like *sabb* (general insult) and *shatm* came to be treated under the umbrella of blasphemy, often conflated with apostasy because insulting the Prophet was deemed a rejection of Islam itself.

Historical Contexts: From Medinan Tolerance to Imperial Enforcement

During the Prophet's lifetime in Medina, several individuals known for insulting him were killed—most famously the poet Ka'b ibn al-Ashraf and the Jewish leader Abū 'Aḥak. These incidents, however, were not merely about speech; they occurred in a context of ongoing warfare where words were seen as part of enemy propaganda. Historical records suggest that the Prophet tolerated much verbal abuse from the Quraysh in Mecca and even from some Medinan hypocrites (*munāfiqūn*) without ordering their execution, indicating a strong element of political and security considerations.

Under the Umayyad and Abbasid caliphates, blasphemy charges became a tool to suppress dissent. The infamous *miḥna* (inquisition) under Caliph al-Ma'mūn targeted theologians not for insulting the Prophet but for holding doctrines deemed heretical by the state. In later centuries, especially during periods of political fragmentation, rulers used blasphemy accusations to eliminate rivals or to assert Islamic legitimacy. In **minority settings**, such as medieval Spain or contemporary Europe, blasphemy laws sometimes become a flashpoint for communal tensions, while in **majority settings** like Pakistan or Iran, they are enforced with varying degrees of rigour and are frequently criticised for being misused against minorities and political opponents.

Theological Schools and the Role of Reason

Islamic theological traditions diverge on whether blasphemy should be treated as a purely legal offence or a sin subject to divine discretion. The **Ash'arī** school, which came to dominate Sunni orthodoxy, generally accepted the legal rulings of the jurists without questioning their rational basis. In contrast, the **Mu'tazilī** school, known for its emphasis on reason and human free will, argued that God's justice

would not punish a mere word without genuine intent to undermine the community. This rationalist current, though historically eclipsed, provides an important precedent for questioning the death penalty for blasphemy.

The Muʿtazila held that the gravity of offences against God did not automatically translate into human-administered punishment; rather, societal harm had to be proven. This perspective aligns more closely with modern principles of proportionality and freedom of conscience, even though most classical Muʿtazilī thinkers still accepted a state’s right to restrict speech deemed dangerous.

Juristic Schools: A Spectrum of Severity

The four major Sunni legal schools—**Ḥanafī**, **Mālikī**, **Shāfiʿī**, and **Ḥanbalī**—developed detailed doctrines on sabb al-nabi, with significant differences.

- **Ḥanafī** jurists, notably those of the early Kufan school, took a relatively restrained approach. They distinguished between a Muslim and a *dhimmī* (protected non-Muslim) offender. A Muslim who insulted the Prophet was considered an apostate and given time to repent; only persistent refusal to recant could lead to execution. For a *dhimmī*, the act breached the protection pact and could incur death, but some Ḥanafīs allowed for renewal of the pact. Repentance was always a mitigating factor and was encouraged.
- **Mālikī** scholars, particularly in the Medinan tradition, adopted the strictest stance. They considered sabb al-nabi a *ḥadd* crime with a mandatory death sentence, even if the offender repented. This irrevocability was justified by the need to protect the honour of the Prophet, which they regarded as a right belonging to the entire Muslim community (*ḥaqq Allāh*), not subject to individual forgiveness.
- **Shāfiʿī** jurists, while also severe, introduced more procedural safeguards. The death penalty applied to a sane adult Muslim who explicitly reviled the Prophet; accidental or ambiguous utterances were not punished. Some Shāfiʿīs allowed repentance to avert the punishment, though others insisted that once the *ḥadd* was established, it had to be carried out.
- **Ḥanbalī** jurists leaned toward the Mālikī position in affirming the mandatory death sentence. However, the influential Ḥanbalī scholar Ibn Taymiyya (d. 1328) argued that while death was legally sanctioned, it should be applied only when there was clear and persistent public harm, and that private insults could be dealt with through admonishment. This nuanced view reflects a tension within the school between textual literalism and practical governance.

All schools agreed that the punishment was not a purely private matter; it was a public crime against the community’s symbolic unity. Yet the variations show that sharia is not monolithic and that legal reasoning (*ijtihād*) always left room for context.

Orientalist Perspectives: Law as Power

Western scholars of Islamic law, often labelled “orientalist,” have analysed blasphemy provisions as artefacts of political power rather than divinely mandated punishments. Ignaz Goldziher and Joseph Schacht, for example, argued that the severe penalties for sabb al-nabi emerged gradually, drawing on pre-Islamic Arab customs of honour and retribution, and were enshrined to consolidate clerical authority. They contended that the historical evidence shows the Prophet’s community was far more tolerant of verbal criticism than the later legal literature suggests.

This perspective highlights a disjunction between the idealised past and the institutionalised law. Orientalists have been criticised for downplaying the religious sincerity of jurists, but their observations underscore that blasphemy laws are often more about boundary maintenance than about protecting the Prophet’s personal dignity.

Human Rights Declarations and the Contemporary Dilemma

The Universal Declaration of Human Rights (UDHR, 1948) guarantees freedom of thought, conscience, and religion (Article 18) and freedom of opinion and expression (Article 19). These rights are not absolute; they may be limited to protect public order, health, or morals. Nevertheless, the international human rights framework strongly disfavours the death penalty for speech-related offences.

In response, Muslim-majority states drafted the Cairo Declaration on Human Rights in Islam (1990), which explicitly subjects all rights to the provisions of sharia. Its Article 22 states that “everyone shall have the right to express his opinion freely” as long as it does not “contradict the principles of the Shari’ah.” This formulation has been used to justify the criminalisation of blasphemy, effectively placing religious sensibilities above unrestricted expression.

Advocacy groups and reform-minded scholars—such as Abdullahi Ahmed An-Na’im and the late Muhammad Sa’id al-Ashmawi—have argued that an authentic, Quran-based interpretation of sharia would protect freedom of expression as a fundamental human value. They point to the Quranic principle of “no compulsion in religion” (Q 2:256) and the prophetic precedent of turning away from mockery to build a case for decriminalising blasphemy altogether.

AI’s Humanistic Approach to Sharia: A Prospective Reinterpretation

Artificial intelligence, when trained on vast corpora of classical Islamic texts, contemporary human rights law, and historical data, could offer a unique humanistic framework for addressing blasphemy. A humanistic approach, whether mediated by AI or human reason, prioritises human dignity, compassion, and intellectual flourishing. By applying the *maqāṣid al-sharī’a* (the higher objectives of Islamic law)—protection of life, intellect, religion, lineage, and property—an AI-driven analysis might conclude that

the death penalty for words contravenes the objectives of protecting life (*nafs*) and intellect (*‘aql*), especially when the utterance causes no concrete harm.

Such an approach would not reject the sacred status of the Prophet but would recontextualise it within a framework that values freedom of conscience as a divine trust. It would emphasise that the Qur’an itself invites argumentation in the best manner (Q 16:125) and that the Muslim community historically thrived through intellectual contestation. AI, devoid of nationalist or sectarian biases, could model the downstream effects of blasphemy laws: their disproportionate use against minorities, their chilling effect on scholarship, and their deviance from the prophetic model of mercy.

This humanistic re-reading aligns with the vision of certain contemporary Muslim thinkers who call for a moratorium on *hudūd* punishments in the modern era, not as a denial of divine sovereignty but as a faithful application of the compassionate justice that lies at the heart of sharia.

Conclusion

The conflict between freedom of expression and religious offence in sharia is not a simple binary. Classical Islamic law, built on scriptural cues, historical precedents, and juristic reasoning, has historically favoured the protection of communal honour through severe penalties for blasphemy. Yet within that tradition lie abundant resources for a more tolerant interpretation: the Quranic silence on a temporal punishment, the diversity among theological and legal schools, the prophetic example of forbearance, and the overarching goals of mercy and reason. As Muslim societies grapple with global human rights norms, the humanistic potential of sharia—amplified by tools like AI that can analyse texts without sectarian prejudice—may offer a path beyond the impasse. In a world of deep pluralism, rediscovering sharia’s own ethical priorities might turn the clash between freedom and offence into a constructive dialogue.

SEGMENTED DATA (2)

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273 words | 1820 chars

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